RESOLUTION MEPC.58(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973RESOLUTION HEPC. 58(33) (adopted on 30 Oc tober 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973
(Revised Annex III)
THE MARINE ENVIRONMENT PROTECTION COMMITTEE,
RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the function of the Committee conferred upon it by international conventions for the prevent ion and con trol of marine pollution,
NOTING articl e 1 6 of the International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1973 Convention") and article VI of the Pro tocol of 1978 relating to the 1973 Convention (hereinafter referred to as th e >11978 Protocol") which together specify the amendment procedure of the 1978 Protocol and confer upon the appropriate body of the Organization the function of considering and adopting amendments to the

(hereinafter referred to as th e >11978 Protocol") which together specify the amendment procedure of the 1978 Protocol and confer upon the appropriate body of the Organization the function of considering and adopting amendments to the 1973 Convention, as modified by the 1978 Protocol (HARPOL 73/78),
RECALLING ALSO that the Committee adopted rea olu tion HEPC.3S(27) on implementation of Annex III of MARPOL 73/78 by which it ia atated, inter alia, that the revised provisions of Annex III can be treated as equivalent to the existing provisions and hence nothing in HARPOL 73/78 will prevent Parties to Annex III from givi ng effect to the revis ed provisions of Annex III without awaiting the formal entry into force of the revis ed provisions,
RECALLING FURTHER that the Committee decided to commence action to amend Annex III to HARPOL 73/78 in ac~ordance with arti cle 16 of HARPOL 73/78, immediatel y upon the entry into for ce,
NOTING ALSO that the existing provisions of Annex III of HARPOL 73/78 already came into fo~ce an 1 July 1992,
HAVING CONSIDERED, the amendments to Annex III of HARPOL 73 /78, which

immediatel y upon the entry into for ce,
NOTING ALSO that the existing provisions of Annex III of HARPOL 73/78
already came into fo~ce an 1 July 1992,
HAVING CONSIDERED, the amendments to Annex III of HARPOL 73 /78, which
we~e agreed at its twenty-sixth session, modified at its thirtieth and
thirty-first sessions and circulated in accordance with article 16(2)(a) of
the 1973 Convention,
1. ADOPTS in accordance with article 16(2)(d) of the 1973 Convention
amendments to Annex III of HARPOL 73/78, the text of which is set out in th e
annex to the present resolution;
RESOLUTION MEPC.58(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL
CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 2 -
2. DETERMINES, i n accordance with article 16(2)(£)(iii) of the
1973 Convention , that the amendments shall be deemed to have been accepted
on 30 August 1993, unless, prior to that date, not less than one third of the
Parties or the Parties, the co mbined merchant fleets of which constitute not
less than fifty per cent of the gross tonnage of the worl d's merchant fleet.

on 30 August 1993, unless, prior to that date, not less than one third of the Parties or the Parties, the co mbined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the worl d's merchant fleet. have communic ated to the Organization their objections to the amendments;
3. INVITES the Parties to note that, in accordance .... ith article 16(2)(g)(ii) of the 1973 Convention, the amendments shalt enter into for ce on 28 February 1994 in accordance with paragraph 2 above;
4. REQUESTS the Secret ary- General, in conformity with article 16{Z)(e) of the 1973 Convention, to transmit to all Parties to Annex III of the 1978 Protocol certified cop ies of the pre sent resolution and the text of the amendments contained in the annex;
5. REQUESTS FURTHER the Secretary-General to transmit to the Members of the Organiza tion whic h are not Parties to Annex III of the 1978 Protocol copies of the resolution and its annex.
RESOLUTION MEPC.58(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 3 -
ANNEX

the resolution and its annex.
RESOLUTION MEPC.58(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 3 -
ANNEX
The existing text of Annex III is replaced by the following:
ANNEX III
REGULATIONS FOR THE PREVENTION OF POLLUTION BY HARMFUL SUBSTANCES CARRIED BY SEA IN PACKAGED FORM
Regulation 1
Application
Unless expressly provided otherwise, the regulations of this Annex apply to all ships carrying harmful substances in packaged form.
1.1 For the purposes of this Annex, "harmful substances" are those substances which are identified as marine pollutants in the International Maritime Dangerous Goods Code (rHDG Code).*
1.2 Guidelines for the identification of harmful substances in packaged form are given in the appendix to this Annex .
1.3 For the purposes of this Annex, "packaged form" is defined as the forms of containment specified for harmful substances in the IMDG Code.
2 The carriage of harmful substances is prohibited, except in accordance with the provisions of this Annex.

forms of containment specified for harmful substances in the IMDG Code.
2 The carriage of harmful substances is prohibited, except in accordance with the provisions of this Annex.
3 To supplement the provisions of this Annex, the Government of each Party to the Convention shall issue, or cause to be issued, detailed requirements on packing, marking, labelling, documentation, stowage, quantity limitations and exceptions for preventing or minimizing pollution of the marine environment by harmful substances.*
4 For the purposes of this Annex, empty packagings which have been used previously for the carriage of harmful substances shall themselves be treated as harmful substances unless adequate precautions have been taken to ensure that they contain no residue that is harmful to the marine environment.
5 The requirements of this Annex do not apply to ships' stores and equipment.
* Reference is made to the International Maritime Dangerous Goods Code (IMDG Code) adopted by the Organization by resolution A.7I6(17) as it has been or may be amended by the Maritime Safety Committee.
RESOLUTION MEPC.58(33) (adopted on 30 October 1992)

(IMDG Code) adopted by the Organization by resolution A.7I6(17) as
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RESOLUTION MEPC.58(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL
CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 4 -
Regulation 2
Packing
Packages shall be adequate to minimize the hazard to the marine
environment, having regard to their specific contents.
Regulation 3
Harking and labelling
Packages containing a harmful substance shall be durably marked with
the correct technical name (trade names alone shall not be used) and, further,
shall be durably marked or labelled to indicate chat the substance is a marine
pollutant. Such identification shall be supplemented where possible by any
other means, for example, by use of the relevant United Nations number.
2 The method of marking the correct technical name and of affixing labels
on packages containing a harmful substance shall be such that this information
will still be identifiable on packages surviving at least three months'
immersion in the sea. In considering suitable marking and labelling, account

on packages containing a harmful substance shall be such that this information will still be identifiable on packages surviving at least three months' immersion in the sea. In considering suitable marking and labelling, account shall be taken of the durability of the materials used and of the surface of the package.

3 Packages contaLn1ng small quantities of harmful substances may be exempted from the marking requirements.*

Regulati.on 4**

Documents tion

In all documents relati.ng to the carriage of harmful substances by sea vhere such substances are named, the correct technical name of each s uch substance shall be used (trade names alone shall not be used) and the substance further identified by the addition of the vords '~ARINE POLLUTANT".

2 The shipping documents supplied by the shipper shall include, or be accompanied by, a signed certificate or declaration th at the shipment of fered for carriage is properly packaged and marked, labelled or placarded as appropriate and in proper condition for carriage to minimize the hazard to the marine environment.

3 Each ship carrying harmful substances shall have a special list or

for carriage is properly packaged and marked, labelled or placarded as appropriate and in proper condition for carriage to minimize the hazard to the marine environment.

3 Each ship carrying harmful substances shall have a special list or manifest setting forth the harmful substances on board and the location thereof. A detailed stowage plan which sets out the location of the harmful substances on board may be used in place of such special list or manife s t.

* Reference is made to the specific exemptions provided for in the International Maritime Danger ous Goods Code (1MDG Code).

** Reference to "d ocu ments" in th is re gulation does not preclude the use of electronic data processing (EDP) and electronic data interchange (ED1) transmission techniques as an aid to paper documentation.

RESOLUTION MEPC.58(33) (adopted on 30 October 1992)

AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 5 -

Copies of such documents shall also be retained on shore by the owner of the ship or his representative until the harmful substances are unloaded.

Copies of such documents shall also be retained on shore by the owner of the ship or his representative until the harmful substances are unloaded.
A copy of one of these documents shalL be made available before departure to the person or organization designated by the port State authority.
4 When the ship carries a special list or manifest or a detailed stowage plan, required for the carriage of dangerous goods by the International Convention for the Safety of Life at Sea. 1974, as amended, the documents required by this regulation may be combined with those for dangerous goods. Where documents are combined, a clear distinction ahall be made between dangerous goods and harmful substances covered by this Annex.

Regulation 5

Stowage

Harmful substances shall be properly stowed and secured 90 as to minimize the hazards to the marine environment without impairing th e safety of the ship and persons on board.

Regulation 6

Quantity limitations

Certain harmful substances may. for Bound scientific and technical reasons, need to be prohibited for carriage or be limited 8S to the quantity

and persons on board.
Regulation 6
Quantity limitations
Certain harmful substances may. for Bound scientific and technical reasons, need to be prohibited for carriage or be limited 8S to the quantity which may be carried aboard anyone ship. In limiting the quantity, due consideration shall be given to size, construction and equipmemt of the ship, as well as the packaging and the inherent nature of the substances.
Regulation 7
Exceptions
1 Jettisoning of harmful substances carried in packaged form shall be prohibited, except where necessary for the purpose of securing the safety of the ship or saving life at sea.
2 Subject to the provisions of the present Convention, appropriate measures based on the physical, chemical and biological properties of harmful substances shall be taken to regulate the washing of leakages overboard, provided that compliance with such measures would not impair the safe t y of the ship and persons on board.
RESOLUTION MEPC.58(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 6 -
Appendix

RESOLUTION MEPC.58(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 6 -
Appendix
GUIDELINES FOR THE IDENTIFICATION OF HARMFUL SUBSTANCES IN PACKAGED FORM
For the purp oses of t his Annex, substances identified by a nyone of the following criteria are harmful substa nces ;
*
**
bi oaccumul ated to a significant extent and known to produce a hazard to aquatic lif e or to human health (hazard rating "+" in col umn A*); or
bioaccumulated with attendant risk to aqu atic organ i sms or to human heal th with a short retention of the orde r of one week or Less (h azard r atin g "z" in column A*); or
liable to pr oduce tainting of seaf ood (hazard rati ng "T" in co l umn A*); or
hig h l y toxi c to aquatic li fe , defi ned by a LCSO/96 ho u r** l (!ss than 1 ppm (hazard r at i ng "4" i n colum n B*) .
Reference is made t o the Composite List of Hazard Profi le s, pre par ed by the IMO/FAO/UNESCO/WMO/WHO/lAEA/UN/UNEP Joint Gr oup of Experts on the Scientific Aspec ts of Marine Pollution (GESAMP) which is ci rculated

Reference is made t o the Composite List of Hazard Profi le s, pre par ed by
the IMO/FAO/UNESCO/WMO/WHO/IAEA/UN/UNEP Joint Gr oup of Experts on the
Scientific Aspec ts of Marine Pollution (GESAMP) which is ci rculated
annua l l y by the Or ganiz at io n by means of BCH c ir culars t o all IHO Member
States.
The conce ntration of a substance which will , within the specified tim e
(gener al ly 96 hours), kill 50% of the exp osed group of t est organ isms .
LCSO is o f te n specified in mg/ l (parts per mil lion (ppm».
RESOLUTION MEPC.58(33) (adopted on 30 October 1992)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL
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